

(3) Without prejudice to the provisions of section one of this Act and of the last foregoing section, all deeds, bonds, agreements and instruments which are subsisting immediately before the appointed day and affect the British South American Airways Corporation shall on and after the appointed day be as of full force and effect against or in favour of the British Overseas Airways Corporation, and enforceable as fully and effectually as if, instead of the British South American Airways Corporation, the British Overseas Airways Corporation had been named therein or had been a party thereto.

8. This Act may be cited as the Airways Corporations Act, Short title. 1949.

Table of Statutes Referred to in this Act

Short Title	Session and Chapter
Finance Act, 1899	62 & 63 Vict. c. 9.
British Overseas Airways Act, 1939 ...	2 & 3 Geo. 6. c. 61.
Finance Act, 1946	9 & 10 Geo. 6. c. 64.
Civil Aviation Act, 1946	9 & 10 Geo. 6. c. 70.
Finance Act, 1947	10 & 11 Geo. 6. c. 35.

CHAPTER 58

An Act to amend the law with respect to customs in the Isle of Man. [30th July 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The duties of customs payable on tea under section Tea. five of the Act of 1938 shall cease to be payable, but in lieu thereof there shall, until the first day of August, nineteen hundred and fifty, in the case of tea removed or imported into the Isle of Man and not being an Empire product, be payable a duty of customs at the rate of twopence the pound.

(2) This section shall be deemed to have had effect as from the ninth day of April, nineteen hundred and forty-nine.

Wines.

2.—(1) In lieu of the duties imposed on wines by section three of the Act of 1948, there shall, until the first day of August, nineteen hundred and fifty, be payable, on the removal or importation of wines into the Isle of Man, duties of customs at the rates set out in the First Schedule to this Act, the rates specified in the second column thereof applying to wines which are not Empire products and those specified in the third column to wines which are:

12 & 13 Geo. 6. c. 47. Provided that if by virtue of subsection (2) of section four of the Finance Act, 1949, the rates chargeable for light wines which are Empire products are increased either generally or as respects wines produced or manufactured in any particular country, the Governor may from time to time make such orders as may be necessary to provide that this subsection has the same effect as respects wines removed or imported into the Isle of Man as the said section four has for the time being as respects wines imported into Great Britain or Northern Ireland.

53 & 54 Vict. c. 8.

(2) Subsection (2) of section eight of the Customs and Inland Revenue Act, 1890 (which provides that wine rendered sparkling in warehouse is to be deemed to be sparkling wine for the purpose of certain duties charged on sparkling wine), shall apply for the purposes of the duties charged on sparkling wine by this section as it applied for the purposes of the duty mentioned in that subsection.

(3) In this section, the expression "wine" includes the lees of wine, but does not include wine made in Great Britain or Northern Ireland.

(4) This section shall be deemed to have had effect as from the ninth day of April, nineteen hundred and forty-nine.

Sweets.

3.—(1) In lieu of the duties imposed on sweets by section four of the Act of 1948, there shall, until the first day of August, nineteen hundred and fifty, be payable, on the removal or importation of sweets into the Isle of Man, the following duties of customs—

- (a) in the case of sparkling sweets not exceeding twenty-seven degrees proof spirit, a duty at the rate of one pound eight shillings per gallon;
- (b) in the case of sparkling sweets exceeding twenty-seven degrees proof spirit, a duty at the rate of one pound sixteen shillings per gallon;
- (c) in the case of other sweets not exceeding twenty-seven degrees proof spirit, a duty at the rate of ten shillings per gallon;
- (d) in the case of other sweets exceeding twenty-seven degrees proof spirit, a duty at the rate of one pound ten shillings per gallon.

(2) In this section, the expression " sweets " means any liquor which is made in Great Britain or Northern Ireland from fruit and sugar, or from fruit or sugar mixed with any other material, and which has undergone a process of fermentation in the manufacture thereof, and includes British wines, made wines, mead and metheglin.

(3) This section shall be deemed to have had effect as from the ninth day of April, nineteen hundred and forty-nine.

4.—(1) In lieu of the duties imposed on matches by section six of the Act of 1940, there shall, until the first day of August, nineteen hundred and fifty, be payable, on the removal or importation of matches into the Isle of Man, duties of customs at the rates specified in the Second Schedule to this Act. Matches.

(2) For the purposes of the duties under this section, a match which has more than one point of ignition shall be reckoned as so many matches as there are points of ignition.

(3) The Commissioners may make regulations with respect to the collection of the duties under this section, and may for that purpose apply, with the necessary modifications, to matches removed or imported into the Isle of Man, any enactments applicable to duties on matches imported into Great Britain and Northern Ireland.

(4) This section shall be deemed to have come into operation on the ninth day of April, nineteen hundred and forty-nine.

5.—(1) In lieu of the duties imposed on mechanical lighters and component parts thereof by section seven of the Act of 1940, there shall, until the first day of August, nineteen hundred and fifty, be payable, on the removal or importation into the Isle of Man of any article, being a mechanical lighter or component part of a mechanical lighter other than a flint, the following duties of customs— Mechanical
lighters.

(a) in the case of any such article shown to the satisfaction of the Commissioners to be constructed solely for the purpose of igniting gas for domestic use—

(i) if manufactured in Great Britain or Northern Ireland, a duty of four shillings;

(ii) if not so manufactured, a duty of five shillings;

(b) in the case of any other such article—

(i) if manufactured in Great Britain or Northern Ireland, a duty of six shillings;

(ii) if not so manufactured, a duty of seven shillings.

(2) The Commissioners may, subject to such conditions (if any), as they think fit to impose, exempt from the duties under this section any mechanical lighters which are shown to their satisfaction to be intended to be used as parts of miners' lamps, and the component parts of any such mechanical lighters.

(3) In this section, the expression "mechanical lighter" means any mechanical or chemical contrivance which is portable and is intended for producing a spark or flame, whether by itself or when brought into contact with gas.

(4) The Commissioners may make regulations with respect to the collection of the duties under this section and may for that purpose apply, with the necessary modifications, to mechanical lighters removed or imported into the Isle of Man any enactments applicable to duties on mechanical lighters imported into Great Britain and Northern Ireland.

(5) This section shall be deemed to have come into operation on the ninth day of April, nineteen hundred and forty-nine.

Annual duties
(continuation).

6.—(1) Subject to the provisions of this section, the duties of customs imposed on goods removed or imported into the Isle of Man, being goods of the descriptions set out in the first column of the following Table, by the respective enactments set out in the second column of that Table, shall continue to be payable until the first day of August, nineteen hundred and fifty:—

TABLE

Description of goods	Enactment imposing duty
Ale and beer	Section one of the Act of 1940.
Cocoa	Section four of the Act of 1924.
Hops and extracts, essences and other similar prepara- tions (other than hop oil) made from hops.	Section five of the Act of 1925.
Hop oil	Section three of the Act of 1929.
Silk and artificial silk and articles made wholly or in part from silk or artificial silk.	Section seven of the Act of 1925, as amended by section eight of the Act of 1926, section nine of the second Act of 1932, section four of the Act of 1933, section three of the Act of 1936, section three of the Act of 1937, section four of the Act of 1947 and subsection (2) of section five of the Act of 1948.
Spirits	Section two of the Act of 1948.
Tobacco	Section one of the Act of 1948.

(2) Where any enactment set out in the second column of the foregoing Table confers power on the Governor to make orders varying or repealing the duties of customs payable on the goods referred to in that enactment or imposing a new duty on such goods, the provisions of that enactment relating to the said power shall continue in force until the said first day of August,

nineteen hundred and fifty, and the foregoing provisions of this section shall have effect subject to any orders made in pursuance of any such power (whether before or after the commencement of this Act) which are for the time being in force.

(3) This section shall be deemed to have come into operation on the first day of August, nineteen hundred and forty-nine.

7.—(1) This Act may be cited as the Isle of Man (Customs) Act, 1949. Short title,
interpretation
and repeals.

(2) In this Act the expression "Empire product" has the same meaning as in section five of the Act of 1919 as amended by any subsequent enactment.

(3) The enactments set out in the Third Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule with effect as from the ninth day of April, nineteen hundred and forty-nine.

SCHEDULES

FIRST SCHEDULE

Section 2.

RATES OF DUTIES ON WINES

<i>Description of wine</i>	<i>Rate of duty per gallon</i>					
	<i>Non-Empire product</i>			<i>Empire product</i>		
	£	s.	d.	£	s.	d.
Light wines:—						
Still—						
not in bottle at ...	0	13	0	0	11	0
in bottle at ...	1	7	6	1	4	6
Sparkling at ...	1	17	6	1	15	6
Other wines:—						
Still—						
not in bottle at ...	2	10	0	2	0	0
in bottle at ...	2	12	6	2	1	6
Sparkling at ...	3	2	6	2	12	6
together, in the case of wine exceeding 42 degrees proof spirit, with an additional duty for each degree or fraction of a degree of the excess at ...	0	4	2	0	3	4

For the purposes of this Schedule, the expression "light wine" means wine not exceeding 25 degrees or, in the case of wine being an Empire product, 27 degrees of proof spirit.

Section 4.

SECOND SCHEDULE

RATES OF DUTIES ON MATCHES						£	s.	d.
For every 1,000 containers in which there are not more than 10 matches						0	19	11
For every 1,000 containers in which there are more than 10 matches, but not more than 20 matches						1	19	10
For every 1,000 containers in which there are more than 20 matches, but not more than 30 matches						2	19	9
For every 144 containers in which there are more than 30 matches, but not more than 50 matches						0	14	5
For every 144 containers in which there are more than 50 matches—								
For the first 50 matches						0	14	5
For every additional 5 matches or part of 5 matches in excess of 50 matches						0	1	5½
And so in proportion for any less number of containers.								

Section 7.

THIRD SCHEDULE

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
1 & 2 Geo. 6. c. 68.	The Isle of Man (Customs) Act, 1938.	Section five.
3 & 4 Geo. 6. c. 49.	The Isle of Man (Customs) Act, 1940.	Sections six and seven and the Fifth Schedule.
11 & 12 Geo. 6. c. 61.	The Isle of Man (Customs) Act, 1948.	Sections three and four and the Third Schedule.

CHAPTER 59

Licensing Act, 1949

ARRANGEMENT OF SECTIONS

PART I

STATE MANAGEMENT DISTRICTS

Section

1. Extension of State management to new towns.
2. Restriction of sale and supply, otherwise than by Secretary of State, of intoxicating liquor in State management districts.
3. Acquisition of land.
4. Provision of alternative accommodation where licensed premises acquired.
5. Provisions as to licences in suspense in State management districts.
6. Expenses and receipts of Secretary of State.
7. Consequential amendment.
8. General provisions as to application of Part I to Scotland.